

File No.: EXP202300600

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On December 2, 2022, a complaint was filed with the Spanish Agency for Data Protection against FUNDACIÓ PRIVADA BANC DELS ALIMENTS with NIF G58443771 (hereinafter, the complained party).

The reasons for the complaint are as follows:

On December 3, 2021, the complainant made a one-time monetary donation to the complained party and requested a tax deduction. For these purposes, they accepted the privacy policy of the complained party.

According to the complainant, the complained party was authorized to process their data until the deadline for filing the income tax return, which ended on June 30, 2022.

Subsequent to the aforementioned date, the complained party made several calls to request a new donation. In the last call received, the complainant informed the interlocutor that they were not authorized to process their data, to which the employee of the complained party responded, "When you made the one-time donation, you subscribed to our privacy policy, and you authorized us to make these calls."

The complainant states that the complained party processes their data unlawfully, as the processing was solely for the purpose of making a one-time donation.

On September 16 and October 2, 2022, they sent an email to the address listed in the privacy policy of the complained party to request information regarding the legal basis that allowed the use of their data. This request has not been addressed.

Along with the complaint, they provide the emails sent to the complained party on September 16 and October 2, 2022.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

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The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on March 9, 2023, as stated in the certificate in the file.

On March 9 and 14, 2023, this Agency received a written response indicating the following:

That the complained party is a non-profit entity whose social purpose is to combat food waste and provide food assistance to people at risk of social exclusion. It is indicated that the complainant has been a subscriber since 2018 to the magazine that the Foundation sends monthly to its donors. It is explained that, in order to obtain more donations, they contracted the services of a company that was responsible for making calls to the complainant to request a new monetary donation for the purchase of food. After the last call, on September 14, 2022, in response to the inquiry about the cancellation procedure, it was communicated that their wish to unsubscribe would be conveyed to the complained party. Subsequently, on September 15, 2022, the complainant requested to unsubscribe as a recipient of the aforementioned magazine. It is reported that on September 16, 2022, the complainant requested information regarding the legal provision that authorized the processing of their data and at what moment they had given their authorization, but the response provided is not documented.

Consequently, this AEPD requests additional information to substantiate the aforementioned response, explaining that all communications between the two parties have been conducted electronically, without a physical document existing. Thus, it is indicated that when the complainant subscribed to the monthly magazine in 2018, they were required to indicate whether they accepted the processing of their personal data by the complained party; and when they made the donation, they provided their personal data for the issuance of the tax certificate.

THIRD: On March 2, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by..."

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pursuant to Regulation (EU) 2016/679, in this organic law, by the regulatory provisions issued in its development and, to the extent that they do not contradict them, subsidiarily, by the general rules on administrative procedures."

II

Processing based on the consent of the data subject

Article 6 of the GDPR, which regulates the lawfulness of processing, establishes the following:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

2. Member States may maintain or introduce more specific provisions to adapt the application of the rules of this Regulation regarding processing in compliance with paragraph 1, points c) and e), by setting more precise specific requirements for processing and other measures that ensure lawful and fair processing, including other specific situations of processing under Chapter IX.

3. The basis for processing referred to in paragraph 1, points c) and e), shall be established by:

- a) Union law, or
- b) the law of the Member States applicable to the data controller.

The purpose of the processing must be determined in that legal basis or, with respect to the processing referred to in paragraph 1, point e), must be necessary for the performance of a task

carried out in the public interest or in the exercise of

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public powers conferred upon the data controller. This legal basis may contain specific provisions to adapt the application of the rules of this Regulation, among others: the general conditions governing the lawfulness of processing by the controller; the types of data subject to processing; the affected data subjects; the entities to which personal data may be communicated and the purposes of such communication; the limitation of purpose; the retention periods for the data, as well as the operations and procedures of processing, including measures to ensure lawful and fair processing, such as those related to other specific processing situations under Chapter IX. The law of the Union or of the Member States shall pursue a public interest objective and shall be proportionate to the legitimate aim pursued.

4. When processing for a purpose other than that for which the personal data were collected is not based on the consent of the data subject or on Union or Member State law that constitutes a necessary and proportionate measure in a democratic society to safeguard the objectives set out in Article 23(1), the data controller, in order to determine whether the processing for another purpose is compatible with the purpose for which the personal data were initially collected, shall take into account, among other things:

- a) any relationship between the purposes for which the personal data were collected and the purposes of the intended further processing;
- b) the context in which the personal data were collected, in particular regarding the relationship between the data subjects and the data controller;
- c) the nature of the personal data, in particular when special categories of personal data are processed, in accordance with Article 9, or personal data relating to criminal convictions and offenses, in accordance with Article 10;
- d) the possible consequences for the data subjects of the intended further processing;
- e) the existence of appropriate safeguards, which may include encryption or pseudonymization."

Article 6.2 of the LOPDGDD establishes that "When the processing of data is intended to be based on the consent of the affected party for multiple purposes, it must be specifically and unequivocally stated that such consent is granted for all of them."

III

Receiving Calls

The processing of personal data for direct marketing purposes is expressly provided for, in general, in data protection regulations, not being ruled out when consent or a legitimate interest of the data controller is present, especially in those cases where there is a relevant and appropriate relationship with the data subject, for example, by virtue of their status as a customer, which allows them to reasonably foresee, at the time and in the context of the collection of personal data, that such processing for these purposes may occur; or when consent has been provided.

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However, affected individuals have the right to oppose at any time the processing of their personal data concerning them, including profiling, to the extent that it is related to the aforementioned marketing, whether regarding initial or subsequent processing, and this can be done at any time and at no cost. The right to object is expressly provided for, in particular, in the specific telecommunications regulations, regarding unwanted telephone calls for commercial communication purposes.

In general, if you do not wish to receive promotional commercial calls, you can contact the promoted entity, whether or not you are a customer, identifying yourself as the user of the telephone line on which you do not wish to receive calls and expressing your refusal or opposition to the processing of

your personal data for advertising purposes. You must use the means made available to you for exercising your rights, generally accessible on the website of the responsible party, and requests received through other contact channels not expressly provided for may not be acknowledged. In this regard, data controllers provide affected individuals with specific channels (postal address, web form, or email address) to exercise the rights provided for in data protection regulations. These channels are detailed in the Privacy Policy document or in the Legal Notice, generally accessible on the website of the responsible party.

You should know that if your identifying personal data appears in publicly available telecommunications directories, you can also exercise your rights with the operator that provides your telephone service, to have your data excluded from the files used by entities authorized by the National Commission of Markets and Competition to compile subscriber directories or to have your opposition to the commercial processing of your data noted in them. Similarly, you can request the omission of some of your data from the directories.

You can register your data in advertising exclusion systems such as the one managed by the Spanish Association of Digital Economy ([***URL.1](#)), in order to limit the receipt of direct marketing communications from entities that have not previously obtained your consent, becoming effective two months after the date of registration.

On the Agency's blog, you can receive advice on how to avoid unwanted advertising. Without prejudice to other actions, you can use the functionality that mobile device operating systems usually offer to automatically block unwanted calls, particularly when they come from a specific telephone line or when they are not listed in your contacts. You can consult the details of this functionality through the corresponding call and/or message settings channel.

If you are unable to prevent the receipt of advertising, you can file an online complaint through the extrajudicial resolution system implemented by AUTOCONTROL (Association for the Self-Regulation of Commercial Communication) and regulated in the Code of Conduct for Data Processing in Activity.

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Advertising, which has been approved by the AEPD. At [***URL.2](#) you can consult the requirements for this agile, fast, and free service.

If you choose to file a new complaint with the AEPD, you must necessarily indicate the phone number on which calls are being received, as well as the identity of the calling or promoted entity, the number of the calling line, and documentary evidence (photographic image of the terminal or screenshot, where the time of receipt can be appreciated, also indicating the exact date) of the calls received after the confirmatory response to your opposition request, or, if this has not occurred, after one month from the receipt of your request by said entity, or two months from the registration in the advertising exclusion system.

In the first case, you must attach a copy of the opposition request, the documentation that proves the receipt of your request, and the response you received. In the second case, you must provide documentary evidence of the date from which the receiving line is registered in the exclusion system. Data protection regulations provide several mechanisms for affected individuals to resolve issues related to the processing of their personal data. If you have any doubts regarding this or wish to exercise your rights, you can, through the expressly provided contact channels, address the data controller directly. If the controller has not resolved the issues raised, you can reach an amicable solution by contacting the Data Protection Officer (DPO) that the controller or processor has designated, whose functions include supervising compliance with data protection regulations within their scope. You can also, without prejudice to actions that can be taken before the Courts of Justice, make use of mediation mechanisms, extrajudicial procedures, and other conflict resolution procedures provided to resolve disputes arising with the data controllers. Through www.aepd.es you can obtain additional information, including forms to exercise your rights.

In the case subject to this file, there is no record that the complaining party has exercised their right to

oppose the receipt of telephone calls for commercial purposes through any of these channels.

IV

Access to the legitimizing cause of processing

Regarding the access request related to the legitimizing cause of processing, Article 15 of the GDPR states:

“1. The data subject shall have the right to obtain from the controller confirmation as to whether or not personal data concerning them are being processed and, if that is the case, the right of access to the personal data and to the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;
- d) where possible, the envisaged period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
- e) the existence of the right to request from the controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject, or to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;
- g) when the personal data have not been obtained from the data subject, any available information as to their source;
- h) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in those cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

2. When personal data are transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards pursuant to Article 46 relating to the transfer.

3. The controller shall provide a copy of the personal data undergoing processing. The controller may charge a reasonable fee for any further copies requested by the data subject based on administrative costs. When the data subject makes the request by electronic means, and unless otherwise requested, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy referred to in paragraph 3 shall not adversely affect the rights and freedoms of others.”

The complainant indicates that all communications between the two parties have been conducted electronically, without a physical document as evidence, in addition to being stated in the privacy policy of the Foundation.

V

Conclusion

In the present case, after analyzing the documents provided and the circumstances involved, there are no reasonable indications of the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

In accordance with what has been stated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to FUNDACIÓ PRIVADA BANC DELS ALIMENTS and to the complaining party.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided for in Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and

in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Court of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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